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UC student assoc. expected to pay UC-Berkeley

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Author: UC-Berkeley; Jay Kapp | Section: News | 501 Words
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(*#_Company_Name_#*) BERKELEY, Calif. -- UC Berkeley officials said they expect the ASUC to pay back its debt of almost half a million dollars despite insufficient funds in the student government's budget.

ASUC President Jesse Gabriel said he is drafting a proposal that will estimate the amount of time needed for the ASUC to repay the university as well as identify the sources from which the money will be drawn.

The university is waiting to receive plans from the ASUC for payment of nearly $400,000 to the financial aid office.

Need-based financial aid to students would not be affected by payment delay, said Dean of Students Karen Kenney.

The proposal must be approved by the ASUC Senate before it is submitted to university officials.

"Vice Chancellor Paul Gray and Chancellor (Robert) Berdahl are very understanding of the situation and willing to work with the ASUC to settle the situation," Kenney said.

The ASUC Senate failed to return any of the more than $1 million raised by Proposition 2 student fee increases during the latest budgeting process.

The proposition raised student fees directed to the ASUC by $17.50 per semester. The money is typically distributed to student groups, and the ASUC has already made such disbursements for the 2002-03 year.

University policy mandates that one-third of all Proposition 2 fees be paid back to the financial aid office.

The university has been accommodating in waiting for a proposal for the payments, Kenney said.

Gabriel met with university officials in October, informing them of the financial misstep that occurred during last year's ASUC budget allocations, Kenney said.

Although a formal plan for repaying the university has not yet been proposed by Gabriel, he said there are adequate sources available to the ASUC with which to pay the university.

"There is a way to work with what we have this year," he said. "There are ways for us to solve this problem without hurting student groups. I have emphasized this to the senate."

The $40,000 budgeted toward previously postponed improvements to the Martin Luther King, Jr. Student Union will most likely be included in the proposal, Gabriel said.

The outstanding payment first became public in Wednesday's edition of The Daily Californian after the topic had been discussed by the ASUC in closed-door sessions, which included guidance from an ASUC attorney.

The publication of the ASUC's dire budget crisis received criticism from many ASUC officers.

"Whoever spoke to (The Daily Californian) violated their fiduciary duty as senator, and that is an impeachable offense," Gabriel said. "When I find out who it was, I am going to be very angry at them."

At Wednesday night's ASUC Senate meeting, APPLE Senator Misha Leybovich responded to ASUC officials quoted in

the article, including President Gabriel and Student Action Senator Cliff Costa.

"While I don't believe it should be hidden from the public, it is our fiduciary duty to not talk about this," he said.

Gabriel said he hopes to submit a proposal soon so he can focus more time on other issues facing the ASUC Office of the President.

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